



CHAPTER cii.

An Act to confirm a Provisional Order made by one of His Majesty's Principal Secretaries of State under the Provisional Order (Marriages) Act 1905.

A.D. 1920.

[4th August 1920.]

WHEREAS the Right Honourable Edward Shortt one of His Majesty's Principal Secretaries of State has made the Provisional Order set out in the schedule hereunto annexed under the provisions of the Provisional Order (Marriages) Act 1905:

5 Edw. 7.
c. 23.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as set out in the schedule hereunto annexed is hereby confirmed.

Order in
schedule
confirmed.

2. This Act may be cited as the Provisional Order (Marriages) Confirmation Act 1920.

Short title.

A.D. 1920.

SCHEDULE.

WHEREAS power is given to a Secretary of State by the Provisional Order (Marriages) Act 1905 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt:

And whereas the new church of St. Margaret in the parish of Halstead in the county of Kent and diocese of Rochester was duly consecrated for the performance of divine service on the twentieth day of February one thousand eight hundred and eighty-one and the said church was intended to be substituted for the ancient parish church of St. Margaret Halstead but it does not appear that any deed of substitution in accordance with the provisions of 8 and 9 Vict. cap. 70 and 19 and 20 Vict. cap. 55 was executed until the thirteenth day of November one thousand nine hundred and nineteen or that the new church of St. Margaret has ever been licensed for the solemnization of marriages:

And whereas divers marriages have nevertheless been solemnized in the said church before the Thirteenth day of November one thousand nine hundred and nineteen:

And whereas it is expedient in the circumstances aforesaid to remove all doubts touching the validity of marriages solemnized at the said church of St. Margaret Halstead:

Now therefore I the Right Honourable Edward Shortt one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Provisional Order (Marriages) Act 1905 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect:—

1. All banns of matrimony and marriages published and solemnized before the thirteenth day of November one thousand nine hundred and nineteen in the church of St. Margaret in the parish of Halstead in the county of Kent and diocese of Rochester shall be deemed to have been as valid as if they had been published and solemnized in a church in which such banns might be published and marriages solemnized lawfully.

2. A minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized such marriage.

[10 & 11 Geo. 5.] *Provisional Order (Marriages)*
Confirmation Act, 1920.

[Ch. cii.]

3. The registers of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence. A.D. 1920.

Given under my hand this twenty-seventh day of February one thousand nine hundred and twenty.

E. SHORTT.

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FOR

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